**REPORTABLE (106)**

**MARIAN CHOMBO**
v
**THE PARTNERS FOR THE TIME BEING OF MTETWA & NYAMBIRAI LEGAL PRACTITIONERS**

**SUPREME COURT OF ZIMBABWE**
**GUVAVA JA, UCHENA JA & MWAYERA JA**
**HARARE: 30 MAY 2025 & 18 NOVEMBER 2025**

*J. Dondo*, for the appellant

*T. R. Mafukidze* with *H. Nkomo*, for the respondent

**UCHENA JA:**

[1] This is an appeal against the whole judgment of the High Court of Zimbabwe sitting at Harare handed down on 15 January 2025 in case number HCH 402/24, under judgment number HH 27/25 in which the court *a quo* granted the respondent's claim in the sum of US$100 000 being legal fees for the legal representation rendered by the respondent to the appellant.

**BACKGROUND FACTS**

[2] The appellant is a female adult who engaged the services of the respondent a firm of legal practitioners to represent her in her divorce case before the High Court and the Supreme Court. The respondent is a registered firm of legal practitioners registered with the Law Society of Zimbabwe.

[3] On 17 June 2011, the appellant engaged the respondent to represent her in her acrimonious divorce proceedings before the High Court in HCH 4409/09. The

respondent, through Mrs Mtetwa, took over the divorce case and assumed agency on behalf of the appellant.

[4] On 2 September 2014 the parties signed a Deed of Settlement in which the appellant acknowledged being indebted to the respondent in the sum of US$ 100, 000-00. In its declaration the respondent alleges that in December 2022, the respondent raised a legal fees invoice after which parties allegedly settled on an amount of US$100 000-00 which the appellant did not pay.

[5] As a result, in January 2024, the respondent issued summons in the court *a quo* claiming the sum of US$100 000-00.

[6] In response to the summons, the appellant requested for further particulars on whether or not the appellant had made an undertaking in writing to pay the debt. She also queried how Mr Jamu had been involved in the agreement to pay the debt.

[7] In its further particulars, the respondent alleged that the 2022 undertaking to pay the claimed amounts was oral and that the appellant had agreed to give to the respondent immovable properties in Chishawasha Hills or sell them to satisfy the debt, but it turned out that the properties did not exist. In explaining how Mr Jamu was involved the respondent stated that the appellant tried to pay the debt using the Lake Chivero stands which Mr Jamu was developing and selling on behalf of the appellant, but it also turned out that the same had not been fully serviced.

## PROCEEDINGS BEFORE THE COURT A QUO

[8] The respondent led evidence from Mrs Mtetwa who outlined the steps she took to protect the appellant's interest's including retrieving the appellant's file from the Registrar of

the court *a quo* when the appellant's former legal practitioner refused to avail the same to her because the appellant had not paid legal fees of US$11 775.74 to him. She averred that she attended several pre-trial conferences even in the appellant's absence. She also stated that she had filed several interlocutory applications. She further averred that the divorce was toxic, complex and acrimonious, which resulted in the respondent engaging the services of an advocate to ensure impartiality during settlement negotiations. Mrs Mtetwa further stated that she had represented the appellant in an application for execution pending appeal. She further stated that she represented the appellant in the Supreme Court. She told the Court *a quo* that because the appellant's file disappeared before the trial was concluded, she successfully applied for a determination of the appeal on the available record. She submitted that the fee of US$100 000 was justified as the appellant's case was complex and the value of the estate involved justified such costs.

[9] In explaining how the Acknowledgement of Debt was entered into, Mrs Mtetwa told the Court that their Managing Partner a Mrs Matshiya had initially charged US$400 000-00 which she negotiated down with the appellant to US$ 200 000-00 which the appellant had accepted. She (Mrs Mtetwa) however felt the US$ 200 000-00 was too much and asked the appellant what amount she would be comfortable with. She told the Court that the appellant agreed to pay legal fees in the sum of US$100 000-00. She further told the Court that the appellant then signed an acknowledgment of debt on 2 September 2014.

[10] Under cross examination Mrs Mtetwa clarified that the negotiations between Mrs Matshiya and the appellant took place in 2014 and led to the acknowledgment of debt dated 2 September 2014. This contradicts and rectifies the respondent's declaration as Mrs Mtetwa further stated that she has to date not charged for legal fees due after the

acknowledgment of debt dated 2 September 2014 as she continued to render legal services to the appellant up to 2018.

[11] She told the Court that the appellant continued to accept her liability for the US$100 000-00 up to 25 January 2024 when her son Ignatius Chombo Junior paid US$2 360 into Mhishi Nkomo Legal Practitioners, the respondent's Legal Practitioners' Nostro Account. Mrs Mtetwa testified on the appellant's various promises to pay and the involvement of a Mr Jamu who was developing stands for the appellant and Ignatius the appellant's son through whom the appellant communicated with her. The promises did not lead to any payment being made until after the issuance of summons.

[12] *Per contra*, Mrs Chombo the appellant in her evidence stated that the fee of US$100 000 was too excessive, unquantified and untaxed. She argued that Mr Jamu was not her agent who could admit liability and undertake to pay the debt in question. She admitted that she received legal representation from the respondent. She averred that she had tried to settle the debt through immovable properties received as part of the divorce settlement, but realised that the properties either did not exist or were not fully serviced. The appellant told the Court *a quo* that she paid US$2 360 into the respondent's legal practitioner's bank account to open negotiations for a reduced fee and that the payment reduced her indebtedness to the respondent.

[13] During cross examination and questions in clarification by the Court the appellant was asked about the issues of prescription and the effect of Statutory Instrument 33 of 2019 which had been earlier alluded to in the appellant's summary of evidence. She, in response, stated that she does not intend to rely on prescription as she wants to pay Mrs Mtetwa for representing her in her divorce case. She added that all she was asking for was a reduction of the fees charged. She further stated that she paid US$2360-00

after the issuance of summons to the respondent's legal practitioners to enable her to negotiate for the reduction of the fees as she alleged Mrs Mtetwa had told her to pay something before they could negotiate the reduction of the US$100 000-00 fees charged and acknowledged by her on 2 September 2014.

[14] Mr *Dondo,* counsel for the appellant in his closing submissions, argued that the respondent's claim had prescribed. He further argued that, in any event, the debt was payable in local currency as is provided by s 22 (1) (d) of the Finance Act No. 2 of 2019.

**DETERMINATION OF THE COURT *A QUO***

[15] The court *a quo* found that the *caveat subscripto* rule precluded the appellant from disassociating herself from the debt in question as she duly signed the acknowledgment of debt unless she could prove misrepresentation, fraud or undue influence. The court *a quo* further found that the appellant's argument that the fees were excessive was not persuasive since the respondent had clearly outlined the legal services rendered. The court further held that the issues of prescription and the effect of S. I. 33 of 2019 were not pleaded but were only raised in the appellant's closing submissions, and as such, the defence could not be entertained without the leave of the court. The court held that the purpose of closing submissions was not to introduce new defences but to give a summary of evidence, led by the parties and the application of the law to it. It therefore, held that, the defences of prescription and the introduction of S.I. 33 of 2019 were not properly pleaded. Accordingly, the Court *a quo* held that the respondent had proved its case on a balance of probabilities and ordered the appellant to pay the claimed sums and interest at the prescribed rate of interest and costs of suit.

[16] Aggrieved the appellant appealed to this Court on the following seven grounds.

**GROUNDS OF APPEAL**

1. The court *a quo* grossly erred and misdirected itself by basing its finding on the grounds that the appellant's defences of prescription and the effect of SI 33/19 were improperly raised for the first time in closing submissions when the record shows that the defences were raised properly in appellant's summary of evidence and throughout the trial.
2. The court *a quo* improperly ignored that respondent's cause of action pleaded in the Summons and Declaration did not require the appellant to specially raise the defence of prescription and the effect of SI 33/19 in the appellant's plea filed on record.
3. The court *a quo* grossly erred and misdirected itself by failing to appreciate that the respondent's evidence as adduced was not in sync with respondent's cause of action as pleaded.
4. The court *a quo*'s finding that appellant approbated and reprobated by shifting positions at different stages of the proceedings is not supportable on the evidence on record.
5. The failure by the court *a quo* to find that the respondent's cause of action relied upon in evidence had long prescribed having regard to the provisions of s 15 (d) and 16 of the Prescription Act [*Chapter 8:11*] was a gross misdirection which a reasonable tribunal would not have arrived at.
6. The court *a quo* grossly erred and misdirected itself by failing to appreciate that the basis of the court's finding and reliance on the acknowledgment of debt signed on 2 September 2014 meant that the respondent's case was affected by the provisions of SI 33/19 with the result that at the worst appellant would have only been liable to the respondent to the tune of ZWL 100 000.00
7. The court *a quo* erred and misdirected itself by allowing respondent's unquantified and untaxed claim which was unreasonably excessive.

**THE APPELLANT'S SUBMISSIONS BEFORE THIS COURT**

[17] At the hearing of the appeal, Mr *Dondo* for the appellant, submitted that the court *a quo* erred in granting an order in favour of the respondent and holding that the defences of prescription and the application of S.I. 33 of 2019 were not properly raised in the pleadings but in the appellant's closing submissions. He argued that these defences did not arise at the beginning because the respondent's summons did not highlight that the claim arose from an acknowledgement of debt signed in 2014, but sometime in December 2022.

[18] The Court enquired from counsel on the effect of the payment of US$2 360 made by the appellant to the respondent on the issue of prescription. In response, Mr *Dondo,* conceded that the payment had the effect of interrupting prescription. He further agreed that in her, evidence the appellant stated that she still wanted to pay the respondent for the services rendered to her, but not in the sum of US$100 000, which was excessive taking into account the services rendered. He argued that the amount paid was paid as a way of opening negotiations on what was reasonable legal costs, as the respondent had requested that the appellant pay some money so that the parties may have a discussion on what was reasonable and due for the legal services rendered.

[19] The Court further enquired from counsel on whether or not the acknowledgment of debt had a condition that the appellant should pay some money so that the US$100 000 may be reduced. In response, counsel conceded that there was no such condition and US$100 000 was the amount agreed between the parties as legal fees.

In respect of the application of Statutory Instrument 33 of 2019 to the debt, Counsel submitted that this was a point of law which could be raised at any stage. Relying on *Zambezi Gas Zimbabwe (Pvt) Ltd* v *N.R. Barber (Pvt) Ltd & Anor 20*20 (1) ZLR 138 at

p 144E-F he submitted further that as the acknowledgment of debt was signed in 2014 the amount agreed upon has to be paid in local currency at the rate of 1US$ to 1RTGS$.

**THE RESPONDENT'S SUBMISSIONS BEFORE THIS COURT**

[20] On the other hand, Mr *Mafukidze,* counsel for the respondent, argued that the appeal was without merit. In motivating his argument, he submitted that the appellant had sought dismissal of the respondent's claim in the court *a quo*, notwithstanding that the appellant had acknowledged being indebted to the respondent and offered to pay US$50 000-00 in full and final settlement. Counsel argued that if the appeal was *bona fide*, the appellant would have appealed against the balance after deducting the US$50 000-00, which she had no problem in paying, instead of praying for an alternative order dismissing the whole of the respondent's claim. Counsel argued that the defence of prescription does not arise in the present case as the case between the parties was ongoing. He argued that parties had always been in constant communication since 2014 when the acknowledgment of debt was signed, which resulted in the respondent trying to sell stands through Mr Jamu to satisfy her indebtedness to the respondent and later paid US$2 360 as part payment.

[21] He further submitted that the summary of evidence was not a plea and as such, the appellant had failed to adhere to the rules of court, which mandated her to raise a special plea of prescription. He also argued that once it was proved that the amount was agreed between the parties, then there was no need for taxation. He argued that if the appellant wanted the bill of costs to be taxed, she ought to have raised a special plea of taxation and that was not done. With regards to the application of S.I. 33 of 2019, counsel without citing any authorities to that effect, argued that the court *a quo* was correct in granting an order for payment of US$100 000 or equivalent at the interbank rate on the day of

payment. Counsel argued that the present appeal was launched to delay payment of the amounts claimed and, as such, he prayed for costs on a punitive scale.

## ISSUES FOR DETERMINATION

[22] Although the appellant raised seven grounds of appeal, the grounds raise three issues for determination, namely:

1. Whether or not the defences of prescription and application of S.I. 33 of 2019 were properly raised.
2. Whether or not the evidence adduced by the respondent proved the claim before the court *a quo* in light of allegations of prescription.
3. Whether or not the debt in question was affected by S.I. 33 of 2019.

## APPLICATION OF THE LAW TO THE FACTS

1. **Whether or not the defences of prescription and application of S.I. 33 of 2019 were properly raised.**

[23] In the first and second grounds of appeal, the appellant's counsel raised the issue that the court *a quo* erred in finding that the defences of prescription and application of S.I. 33 of 2019 were improperly raised. The appellant argued that she raised both pleas in her summary of evidence, in evidence during the trial and in closing submissions. The record of proceedings confirms that the appellant raised these issues at the stated stages of the proceedings *a quo*.

[24] *Per contra*, counsel for the respondent argued that the arguments on prescription are without merit because prescription was not pleaded in the court *a quo* by way of a special plea or with the leave of the court *a quo*. He further argued that prescription and the application of S.I. 33 of 2019 are not issues that were referred to trial when the parties agreed on the pre-trial conference minute. The respondent further argues that the court

exercised its discretion in refusing to entertain the issues of prescription, and the application of s 4 (1) (d) of Statutory Instrument 33 of 2019, and such discretion cannot be interfered with.

[25] A reading of the documents filed of record establishes that the appellant raised the issue of prescription in her summary of evidence, at trial and in her closing submissions. In the case of *El Elion Investments (Pvt) Ltd* v *Auction City (Pvt) Ltd* 2016 (1) ZLR 289 (S) at 293B-G, it was stated as follows in relation to whether or not closing submissions are pleadings:

> "Miss *Mahere* in response while admitting that the appellant dealt with the contractual penalties issue in its closing submissions submitted that a closing submission is not part of the parties' pleadings. I agree. A closing submission made at the end of a trial on an issue not pleaded **or canvassed in evidence does not constitute a pleading or evidence on that issue.** Where the issue has to be pleaded the comment on it in closing submissions does not cure the need for it to be pleaded. Closing submissions are not pleadings. WESSELS J in *Benson & Simpson* v *Robinson* 1917 WLD 126 commented on pleadings as follows:
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> > 'The Plaintiff shall state in concise terms what facts he intends to rely on and to prove and the Defendant shall do the same so that on the day of trial neither party shall be taken by surprise and that it may not be necessary to have the case adjourned, thereby causing wasted expense to both litigants.' (Emphasis added)
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> The same point was made in *Trope* v *South African Reserve Bank* 1992 (3) SA 208 (T) at p 210G-H where MC CREATH J said;
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> > 'It is of course a basic principle that particulars of a claim should be so phrased that a defendant may reasonably and fairly be required to plead thereto. This must be seen against the background of the further requirement that the object of pleadings is to enable each side to come to trial prepared to meet the case of the other and not to be taken by surprise. Pleadings must therefore be lucid and logical and in an intelligible form; the cause of action or defence must appear clearly from the factual allegations made. (Harms Civil Procedure in the Supreme Court) at 263-4.'
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> A party is therefore required through pleadings to place on record its case or defence before the trial starts. This is especially so when a party intends to rely on issues which have to be proved."

[26] Prescription is, by its very nature, a special defence which must be specifically and distinctly pleaded as a special plea. Given that it goes to the root of a claim's enforceability, it must be consciously and formally raised by the party seeking to rely on it. In (1) *Brooker* v *Mudhanda & Anor:* (2) *Pearce* v *Mudhanda & Anor* 2018 (1) ZLR 33, (S) at 38 F-G, the Supreme Court said:

> "The defence of prescription should not be raised by way of exception but must be specifically pleaded. The plea must set out sufficient facts to show on what the defence is based. However, due to its nature, the plea of prescription is a special plea. Such a plea as provided for in the High Court Rules 1971. Order 21, r 137 specifies the manner in which a party wishing to rely on a special plea may raise such."

[27] Rule 42 of the High Court Rules, 2021 establishes the procedural framework governing exceptions, special pleas, and related applications, underscoring that a special plea, such as prescription, must be raised formally, precisely, and at the appropriate stage of proceedings. Subrule 6 requires that the grounds of a special plea be clearly and concisely stated. In terms of subrule (1) (a), a special plea is a plea in bar or abatement that raises a substantive issue capable of disposing of the case without addressing the merits. Subrule (8) requires that it be accompanied by heads of argument, demonstrating that such a plea is not a mere procedural formality but a substantive legal defence requiring reasoned support.

[28] In essence, r 42 affirms that a special plea must be formally pleaded and not casually raised. While prescription is ordinarily required to be pleaded as a special plea, the law recognises that, being a matter that touches the very enforceability of a claim, it may nevertheless be raised at any stage of the proceedings. Section 20 of the Prescription Act [*Chapter 8:11*] reinforces this principle by providing that:

> "(1) No court shall of its own motion take notice of prescription.
> (2)A party to litigation who invokes prescription shall do so in the relevant documents filed of record in the proceedings;

> Provided that a court may allow prescription to be raised at any stage of the proceedings."

In *Nyahuye* v *Leo Electrical (Pvt) Ltd & Anor* SC 11/23, at p 7, the Court observed that:

> "Contrary to Mr *Goba*'s criticism of the court *a quo*, the Act prohibits the court to raise prescription *meru moto.* **Prescription must be pleaded or raised in the papers before the court**. **However, the proviso to subsection 2 of s 20 of the Act empowers the court, at its own discretion, to allow prescription to be raised at any stage of the proceedings.***"*(E*mphasis added*)

[29] To specifically plead prescription entails that a respondent formally raises it as a special defence in their pleadings, asserting that the applicant's claim is barred due to the passage of a prescribed statutory period. This must be done with clarity and precision, as prescription is not automatically applied by the court; it must be invoked by the party relying on it.

Therefore, the crucial requirement in reliance on a special defence is that the defence must be expressly raised, clearly articulated, and substantiated with sufficient evidence. The mere assertion of a legal bar, without proper pleadings and evidentiary support, is insufficient to invoke the court's consideration. In *Dengezi* v *Nyamururu & Ors* CCZ 13/23, GARWE JCC observed:

> "In light of the above, the defence of prescription has to be specifically pleaded and properly established by evidence. Indeed the Prescription Act itself provides, in s 20, that the defence of prescription must be specifically pleaded. In *casu*, it is evident that the defence of prescription was not specifically pleaded."

[30] In view of the above, the summary of evidence relied on by the appellant *a quo,* is a document employed to outline the evidence a party intends to rely upon at trial. Its primary purpose is to inform the court and the opposing party of the anticipated factual and documentary material, a party will rely on at trial thereby enabling efficient case management and trial preparation. It is inherently preparatory for trial, serving as an aide to the pleadings rather than their substitute.

[31] In contrast, pleadings, including the summons, declaration, plea, replication, and any special pleas, define the procedural framework of the dispute. They set out the claims, defences, and issues to be adjudicated, thereby providing both notice to the opposing party and guidance to the court on the matters in contention. A summary of evidence does not perform this function. It does not assert legal rights or defences, and it cannot formally introduce new causes of action or special pleas. In essence, it is not a pleading.

[32] Given that a special plea of prescription must be specifically pleaded and substantiated with evidence, it cannot be raised for the first time in a summary of evidence. Section 20 of the Prescription Act makes it clear that prescription must be raised in the relevant pleadings filed of record. Had it been permissible to raise prescription in any court document, there would have been no need to emphasise pleadings.

The purpose of raising a special plea is to introduce an issue which, if established, may dispose of the case without going into the merits. Pleadings, such as a plea, replication, or a claim in reconvention, are the only proper vehicles for this. However, a summary of evidence may support or elaborate upon a prescription plea already properly pleaded. For example, it may detail the factual basis for the plea, such as the dates on which the cause of action arose, evidence of acknowledgment, or other matters relevant to the computation of the prescriptive period. It cannot, however, itself introduce the defence, as this would circumvent the procedural requirement of formal pleadings and deprive the opposing party of the opportunity to respond. The Court *a quo* therefore correctly decline to determine the issue of prescription.

[33] However the issue of the currency of payment as provided in s 4 (1) (d) of Statutory Instrument 33 of 2019 as substituted by s 22 (1) (d) of the Finance Act No 2 of 2019, is

an ordinary point of law, which need not be specially pleaded. It can be raised at any stage of the proceedings and even on appeal.

[34] In the *El Elion* case *supra*, the Court further noted that:

> "It is accepted that a point of law can be raised at any stage of the process even on appeal. The law on the raising of points of law for the first time on appeal is clear and has been articulated in a plethora of cases. In *Muchakata* v *Netherburn Mine* 1996 (1) 153 (S) at p 157A KORSAH JA said;
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> > 'Provided it is not one which is required by a definitive law to be specially pleaded a point of law, which goes to the root of the matter, may be raised at any time, even for the first time on appeal, if its consideration involves no unfairness to the party against whom it is directed: *Morobane* v *Bateman* 1918 460; *Paddock Motors (PTY) Ltd* v *Igesund* 1976 (3) SA 16 (A) at 23D-G.'"

[35] The court *a quo* therefore erred in failing to take into consideration a point of law raised by the appellant in its summary of evidence, in evidence and closing submissions in respect of the currency of payment. The court *a quo* ought to have made a determination on the currency in which the debt was to be paid. It was therefore a misdirection on the part of the court *a quo* not to determine the issue of the currency of payment.

2. **Whether or not the evidence adduced by the respondent proved the claim before the court *a quo* in light of allegations of prescription.**

[36] In view of this Court's finding in para 30 above that the Court *a quo* correctly declined to determine the issue of prescription because it had not been specifically pleaded and this Court's comment in para 18, on the concession made by Counsel for the appellant that the payment of US$2360-00 by the appellant on 25 January 2024 interrupted prescription, the need to determine this issue falls away.

3. **Whether or not the debt in question was affected by S.I. 33 of 2019.**

[37] In the sixth ground of appeal, the appellant argues that the claim in question was affected by the provisions of s 4 (1) (d) of S.I. 33 of 2019 now s 22 (1) (d) of the Finance Act No

2 of 2019 and as such, the appellant is entitled to pay ZWL100 000.00 to extinguish her indebtedness to the respondent.

[38] As already indicated earlier in this judgment, this is a point of law which can be raised at any stage of the proceedings. The issue, having been raised in the appellant's summary of evidence, in evidence and in closing submissions *a quo,* should have been taken into consideration by the court *a quo* in its determination of the issues placed before it.

[39] The Court *a quo* therefore erred in refusing to take into consideration a point of law which had been covered in evidence and submissions before it. This Court can in cases where it is appropriate to do so determine a point of law raised for the first time on appeal. In this case the point was raised before the Court *a quo* which erroneously declined to determine it. This court must avoid making decisions as a court of first instance, especially in cases where the issues on which the determination is to be made have been fully ventilated in the Court of first instance. It is therefore appropriate that the case be remitted to the Court *a quo* for determination by the same Judge in terms of the evidence led before him and the law.

**DISPOSITION**

[40] The appellant's ground of appeal, No 6 in respect of the Court *a quo*'s failure to determine the issue of what effect S.I. 33 of 2019 had on the parties' acknowledgment of debt dated 2 September 2014, must therefore succeed.

[41] Costs must as is the norm follow the result.

[42] It is accordingly ordered as follows:

1. The appeal be and is hereby allowed.

2. The judgment of the Court *a quo* be and is hereby set aside.

3. The case is remitted to the Court *a quo* before the same Judge for the determination of the effect of S.I. 33 of 2019 on the Acknowledgment of Debt signed by the parties on 2 September 2014.

4. The respondent shall pay the appellant's costs.

**GUVAVA JA** : I agree

**MWAYERA JA** : I agree

*Dondo & Partners Legal Practitioners,* appellant's legal practitioners.

*Mhishi Nkomo Legal Practitioners,* respondent's legal practitioners.